

STATE OF NEW YORK

3283--B

2025-2026 Regular Sessions

IN ASSEMBLY

January 27, 2025

Introduced by M. of A. BORES -- read once and referred to the Committee on Health -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Health in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to the operation of gene synthesis providers and manufacturers of gene synthesis equipment

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "bioterrorism prevention act".

3 § 2. The public health law is amended by adding a new article 32-B to
4 read as follows:

ARTICLE 32-B

GENE SYNTHESIS LABS

7 Section 3230. Operation of gene synthesis providers and manufacturers of
8 gene synthesis equipment.

9 § 3230. Operation of gene synthesis providers and manufacturers of
10 gene synthesis equipment. Any gene synthesis provider or manufacturer
11 of laboratory equipment intended for use by a gene synthesis provider
12 shall operate in accordance with rules and regulations issued by the
13 department. The department shall utilize generally accepted industry
14 standards and take into consideration recommendations and protocols set
15 by the international gene synthesis consortium and/or other similar
16 nationally or internationally recognized relevant organizations to draft
17 such rules and regulations. For the purpose of this section, "gene
18 synthesis provider" shall mean any entity that synthesizes and distrib-
19 utes synthetic nucleic acids to a customer or to a distributor.

20 § 3. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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